HEADNOTE

"1. The UPC has no jurisdiction to entertain a claim seeking a declaration that a composition, independently of a specific patent right, was obvious at a given priority date.
2. The UPC has jurisdiction to ensure the effectiveness of the judicial protection entrusted to it. That jurisdiction extends to conduct designed to circumvent its exercise, including the abusive use of divisional applications. In revocation proceedings or actions for a declaration of non-infringement, that jurisdiction may be exercised, in particular, by declining to dispose of the action under Rule 360 RoP and by determining that a patent lack(ed) inventive step, notwithstanding its withdrawal at the proprietor's initiative.
3. The UPC Central Division has an autonomous jurisdiction to grant provisional and protective measures in matters entrusted to it by the UPCA which includes the power, where necessary, to preserve the effectiveness of pending revocation proceedings, to restrain a party from withdrawing its approval of the text of the patent under Art. 113(2) EPC."

COURT
Central Division in Milan

PROCEEDINGS
Procedural order

PATENT
EP 3 689 365

USE OF LONG-ACTING GLP-1 PEPTIDES

KEYWORDS
Inventive step | Divisional applications | Provisional measures | UPC jurisdiction | Patent withdrawal

Rule 360 No need to adjudicate

SUMMARY
The Central Division in Milan issued a procedural order. The patent at issue relates to the use of long-acting GLP-1 peptides. According to the headnotes of the decision, the UPC cannot entertain claims seeking declarations that a composition was obvious at a priority date. This principle applies independently of any specific patent right. Furthermore, the UPC has jurisdiction to ensure the effectiveness of judicial protection entrusted to it. This jurisdiction extends to conduct designed to circumvent its exercise, including abusive use of divisional applications. In particular, the UPC may decline to dispose of an action under Rule 360 RoP. The UPC may also determine that a patent lacks inventive step despite withdrawal at the proprietor's initiative. Additionally, the Central Division possesses autonomous jurisdiction to grant provisional and protective measures in matters under the UPCA. This power includes the ability to preserve the effectiveness of pending revocation proceedings. Consequently, the Division may restrain a party from withdrawing its approval of the patent text under Article 113(2) EPC where necessary.